

ASSET SALE AGREEMENT

This Asset Sale Agreement (the “**Agreement**”) is entered into on the dates set forth below, but effective as of _____ (“**Effective Date**”) by and between:

DEALERTRACK REGISTRATION AND TITLING SERVICES - LOUISIANA, LLC, a Delaware limited liability company, qualified to and doing business in the State of Louisiana, dba Auto Title Express;

and

FASTPASS TAG & TITLE, a wholly owned subsidiary of ALLIANCE SAFETY COUNCIL, a Louisiana-based nonprofit organization, whose mailing address during the term of this Lease shall be 10099 N. Reiger Rd., Baton Rouge, LA 70809, and who is being represented herein by its President and Chief Executive Officer, Katherine B. Trahan.

Recitals:

Seller is engaged in the business of owning and operating a public tag agency authorized by the Louisiana Office of Motor Vehicles providing the following services: motor vehicle registration, transfers and titling, driver license and identification duplicates and renewals, and boat and watercraft registration, title support, renewals, or other designations provided to public tag agencies authorized by the Louisiana Office of Motor Vehicles (the “**Business**”).

Buyers desire to buy, and Seller desires to sell, certain assets of Seller, all as set forth herein.

Agreement:

NOW, THEREFORE, in consideration of the mutual terms, conditions and provisions set forth herein, Seller and Buyers agree as follows:

1. PURCHASE, SALE AND DELIVERY

1.1 Purchased Assets. Subject to the terms and conditions of this Agreement, Seller does hereby agree to sell, transfer, convey, assign and deliver to Buyer, and Buyer does hereby agree to purchase, acquire and accept on behalf of itself and its successors and assigns, the following (“**Purchased Assets**”):

the assets of Seller listed on Exhibit A, attached hereto and made a part hereof located at 139-141 Arnould Blvd., Lafayette, Louisiana 70506, together with all other fixture, furniture, and equipment located at the address set forth above on the date of Closing (as hereinafter defined).

The Buyer acknowledges that the Purchased Assets are being transferred by the Seller to the Buyer on an “as is”, “where is” basis, without any representation or warranty (except as specifically contained in this Agreement), implied or expressed by the Seller. The Buyer further acknowledges and agrees that the Buyer has had the opportunity and have independently inspected the Purchased Assets and are purchasing from the Seller the Purchased Assets based solely on the Buyer’s inspection of same and not in reliance on any statement, oral or written, by the Seller with respect to the Purchased Assets.

1.2 Excluded Assets. Except as specifically set forth in this Article 1, no assets or interests of Seller will be transferred to the Buyers at the Closing. Without limiting the generality of the foregoing, the parties acknowledge that the Buyers are not acquiring or purchasing any of Seller’s cash or cash equivalents, any accounts receivable of Seller, or any checking accounts, savings accounts, certificates of deposit or any other funds of Seller on deposit with any bank or other financial institution.

1.3 Purchase Price. As consideration for the sale, Buyer shall pay to Seller, at Closing, the sum of _____ AND ____/100 (\$_____ DOLLARS (the "Purchase Price").

1.4 Taxes Upon Conveyance and Transfer. Buyer shall pay all sales, use, transfer or similar taxes payable in connection with the sale, transfer and assignment of the Purchased Assets to Buyers.

1.5 Other Taxes, Utilities and Assessments; Other Allocations. Any personal property taxes or assessments with respect to the Purchased Assets shall be prorated through the date of Closing (based on estimates with reference to the most recent amounts paid), with Seller being responsible for all of such prorated charges attributable to the period prior to the date of Closing and Buyer being responsible for prorated charges attributable to the period commencing on the date of Closing and following. Promptly upon receipt, Buyer or Seller, as appropriate, shall provide the other with copies of all bills for such items for which the other party is responsible pursuant to this Section. The resulting amount payable by Buyer or Seller shall be paid promptly upon demand by the party hereto to whom such payment is owed.

1.6 Delivery of Purchased Assets. The parties acknowledge that the tangible Purchased Assets are located at the 139-141 Arnould Blvd., Lafayette, Louisiana 70506. At Closing, the Buyer will accept and acknowledge delivery of all Purchased Assets.

1.7 Closing. The closing of the aforesaid purchase and sale (the "Closing") shall take place at a place mutually agreed upon by the parties. At the Closing, the parties shall execute an Act of Sale of Assets; Buyer shall pay to Seller the Purchase Price; and the parties shall execute and deliver, or cause to be executed and delivered, all such other and further documents and instruments, and take such further action, as may be reasonably requested by the other party to more fully effectuate the transactions contemplated herein.

2. REPRESENTATIONS AND WARRANTIES OF SELLER

2.1 By Seller. The Seller represents and warrants to the Buyer that the following statements contained in this Article 2 are correct and complete as of the date of the execution hereof and on the date of Closing:

- a. **Corporate Status and Good Standing.** Seller is a limited liability company duly organized, validly existing and in good standing under the laws of Louisiana, with full corporate power and authority under its articles of organization and operating agreement to conduct business as the same exists.
- b. **Authorization.** Seller has full corporate power and authority under its certificate or articles of incorporation and by-laws, and its board of directors and stockholders have taken all necessary action to authorize it to execute and deliver this Agreement and the exhibits and schedules hereto, to consummate the transactions provided herein and to take all actions required to be taken by it pursuant to the provisions hereof, and each of this Agreement and the exhibits and schedules hereto constitutes the valid and binding obligation of Seller enforceable in accordance with its terms.
- c. **Title.** Seller is the true and lawful owner of the Purchased Assets, free and clear of any and all liens, encumbrances, mortgages, options, security interests, restrictions, liabilities, pledges and assignments of any kind, and Seller has the full right to sell and transfer to Buyers good, valid and marketable title to the Purchased Assets, free and clear of any and all liens and encumbrances of any nature or description.

3. REPRESENTATIONS AND WARRANTIES OF BUYER

3.1 By Buyer. The Buyer represents and warrants to the Seller that the following statements contained in this Article 3 are correct and complete as of the date of the execution hereof and on the date of Closing:

- a. **Corporate Status and Good Standing.** Buyer, FASTPASS TAG & TITLE, a wholly owned

subsidiary of ALLIANCE SAFETY COUNCIL, a Louisiana-based nonprofit organization, with full corporate power and authority under its articles of incorporation and by-laws to conduct all legal business.

- b. **Authorization.** Buyer has full corporate power and authority under its certificate or articles of incorporation and by-laws, and its board of directors and stockholders have taken all necessary action to authorize it to execute and deliver this Agreement and the exhibits and schedules hereto, to consummate the transactions provided herein and to take all actions required to be taken by it pursuant to the provisions hereof, and each of this Agreement and the exhibits and schedules hereto constitutes the valid and binding obligation of Buyer enforceable in accordance with its terms.

4. COVENANTS

4.1 Further Assurances. Seller and/or Buyer, as the case may be, shall duly execute and deliver, or cause to be executed and delivered, all such other and further documents and instruments, and take such further action, as may be reasonably requested by the other party to more fully effectuate the transactions contemplated herein.

5. INDEMNIFICATION

The Seller and Buyer, jointly, severally and on an in solido basis with each other, shall indemnify and hold each other (including their officers, directors, employees and agents) (collectively “**the Parties**”, or individually, a “**Party**”) harmless from and against any and all claims, actions, causes of action, arbitrations, proceedings, losses, damages, liabilities, judgments and expenses (including, without limitation, reasonable attorneys’ fees incurred by the other as a result of (a) any error, inaccuracy, breach or misrepresentation in any of the representations and warranties made by or on behalf of the Parties in this Agreement or the Act of Sale, (b) any violation or breach by the Parties of or default by the Parties under the terms of this Agreement or the Act of Sale, (c) any act or omission occurring after the date of Closing, or any condition or circumstances caused by any act or omission occurring after the date of Closing, or with respect to the Purchased Assets, or (d) any liabilities or obligations of Seller expressly assumed by Buyers in this Agreement or the Act of Sale. Seller shall be entitled to recover its reasonable and necessary attorneys’ fees and litigation expenses incurred in connection with successful enforcement of its rights under this Section.

6. GENERAL PROVISIONS

6.1 Expenses. Buyer and Seller shall pay their own respective expenses, including the fees and disbursements of their respective counsel in connection with the negotiation, preparation and execution of this Agreement and the Act of Sale and the consummation of the transactions contemplated herein.

6.2 Entire Agreement. This Agreement and the Act of Sale, including all schedules and exhibits thereto, constitute the entire agreement of the parties with respect to the subject matter hereof, and may not be modified, amended or terminated except by a written instrument specifically referring to this Agreement and/or the Act of Sale, as applicable, signed by all the parties hereto.

6.3 Waivers and Consents. All waivers and consents given hereunder shall be in writing. No waiver by any party hereto of any breach or anticipated breach of any provision hereof by any other party shall be deemed a waiver of any other contemporaneous, preceding or succeeding breach or anticipated breach, whether or not similar.

6.4 Notices. All notices and other communications hereunder shall be in writing and shall be deemed to have been received only if and when (i) personally delivered or (ii) on the third day after mailing, by United States mail, first class, postage prepaid, by certified mail return receipt requested, addressed in each case as follows (or to such other address as may be specified by like notice):

If to **Seller**, to:

**DEALERTRACK REGISTRATION
AND TITLING SERVICES - LOUISIANA, LLC**

c/o _____
3939 Veterans Memorial Blvd.
Ste. 204
Metairie, LA. 70002

If to **Buyer**, to:
FASTPASS TAG & TITLE
c/o Kathy Trahan
10099 N. Reiger Rd.
Baton Rouge, LA 70809

With copy to:
ALLIANCE SAFETY COUNCIL
c/o Kathy Trahan
10099 N. Reiger Rd.
Baton Rouge, LA 70809

6.5 Successors and Assigns. This Agreement shall be binding upon and shall inure to the benefit of the parties hereto and their respective successors, legal representatives and assigns. No third party shall have any rights hereunder. No assignment shall release the assigning party.

6.6 Choice of Law; Section Headings. This Agreement shall be governed by the laws of the State of Louisiana. The section headings contained in this Agreement are for reference purposes only and shall not affect the meaning or interpretation of this Agreement.

6.7 Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed to be an original and all of which together shall be deemed to be one and the same instrument.

EXHIBIT A TO ASSET SALE AGREEMENT – PURCHASED ASSETS
EXHIBIT B TO ASSET SALE AGREEMENT – RESOLUTION OF SELLER
EXHIBIT C TO ASSET SALE AGREEMENT – RESOLUTION OF BUYER

[SIGNATURES APPEAR ON FOLLOWING PAGES]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement on the dates set forth below, but effective for all purposes as of _____.

WITNESSES:

Printed Name: _____

Printed Name: _____

SELLER:

**DEALERTRACK REGISTRATION AND
TITLING SERVICES - LOUISIANA, LLC**

By: _____
Printed Name: _____
Its: _____
Dated as of _____

IN WITNESS WHEREOF, the parties hereto have executed this Agreement on the dates set forth below, but effective for all purposes as of _____.

WITNESSES:

Printed Name: _____

Printed Name: _____

BUYER:

FASTPASS TAG & TITLE, a wholly owned subsidiary of ALLIANCE SAFETY COUNCIL, a Louisiana-based nonprofit organization **TITLING SERVICES - LOUISIANA, LLC**

By: _____
Printed Name: _____
Its: _____
Dated as of _____

EXHIBIT A
TO ASSET SALE AGREEMENT
PURCHASED ASSETS

EXHIBIT B
TO ASSET SALE AGREEMENT
RESOLUTION OF SELLER

EXHIBIT C
TO ASSET SALE AGREEMENT
RESOLUTION OF BUYER

ACT OF SALE (ASSETS)

BE IT KNOWN, that on the dates set forth below, but effective as of _____ (“**Effective Date**”), before the respective undersigned Notaries Public, duly commissioned and qualified in and for the States and Counties hereinafter designated, and in the presence of the undersigned competent witnesses, personally came and appeared:

DEALERTRACK REGISTRATION AND TITLING SERVICES - LOUISIANA, LLC, a Delaware limited liability company, qualified to and doing business in the State of Louisiana, dba Auto Title Express;

and

FASTPASS TAG & TITLE, a wholly owned subsidiary of ALLIANCE SAFETY COUNCIL, a Louisiana-based nonprofit organization, whose mailing address during the term of this Lease shall be __10099 N. Reiger Rd., Baton Rouge, LA 70809____, and who is being represented herein by its President and Chief Executive Officer, Katherine B. Trahan.

Recitals.

The parties entered into an Asset Sale Agreement executed on _____ (the “**Asset Sale Agreement**”).

Pursuant to the Asset Sale Agreement, the parties are entering into this Act of Sale.

Agreements.

NOW, THEREFORE, in consideration of the mutual terms, conditions and provisions contained in the Asset Sale Agreement and herein, Seller and Buyers do hereby agree as follows:

1. DEFINITIONS. Unless otherwise defined herein, capitalized terms used herein shall have the definitions and meanings ascribed thereto in the Asset Sale Agreement.

2. SALE OF ASSETS.

2.1 Sale. Subject to the terms and conditions of this Act of Sale and the terms and conditions of the Asset Sale Agreement, Seller hereby sells, assigns, transfers and delivers to Buyer, and Buyer hereby purchases, acquires and accepts, the Purchased Assets. Buyer acknowledges delivery of the Purchased Assets as set forth in the Asset Sale Agreement and as listed on **Exhibit A** attached hereto and made a part hereof.

2.2 PURCHASE PRICE. In consideration of the aforesaid purchase and sale, Buyer hereby pays to Seller the purchase price of _____, cash or cash equivalent, the receipt and sufficiency of which is hereby acknowledged by Seller.

3. REPRESENTATIONS AND WARRANTIES.

3.1 Of Seller. Seller hereby reiterates and confirms each and every representation, warranty and covenant (to the extent applicable) made by Seller in the Asset Sale Agreement, as if each representation, warranty and covenant were set forth in full herein.

3.2 Of Buyer. Buyer hereby reiterates and confirms each and every representation, warranty and covenant (to the extent applicable) made by Buyer in the Asset Sale Agreement, as if each representation, warranty and covenant were set forth in full herein.

4. MISCELLANEOUS.

4.1 Notices. All notices and other communications hereunder shall be in writing and shall be deemed to have been received only if and when (i) personally delivered or (ii) on the third day after mailing, by United States mail, first class, postage prepaid, by certified mail return receipt requested, addressed in each case as follows (or to such other address as may be specified by like notice):

If to **Seller**, to:

**DEALERTRACK REGISTRATION
AND TITLING SERVICES - LOUISIANA, LLC**

c/o _____
3939 Veterans Memorial Blvd.
Ste. 204
Metairie, LA. 70002

If to **Buyer**, to:

FASTPASS TAG & TITLE

c/o Kathy Trahan
10099 N. Reiger Rd.
Baton Rouge, LA 70809

With copy to:

ALLIANCE SAFETY COUNCIL

c/o Kathy Trahan
10099 N. Reiger Rd.
Baton Rouge, LA 70809

4.2 Successors and Assigns. This Act of Sale shall be binding upon and shall inure to the benefit of the parties hereto and their respective successors, legal representatives and assigns. No third party shall have any rights hereunder. No assignment shall release the assigning party.

4.3 Choice of Law; Section Headings. This Act of Sale shall be governed by the laws of the State of Maryland. The section headings contained in this Act of Sale are for reference purposes only and shall not affect the meaning or interpretation of this Act of Sale.

4.4 Counterparts. This Act of Sale may be executed in any number of counterparts, each of which shall be deemed to be an original and all of which together shall be deemed to be one and the same instrument.

**EXHIBIT A TO ACT OF SALE – PURCHASED ASSETS
EXHIBIT B TO ACT OF SALE – RESOLUTION OF SELLER
EXHIBIT C TO ACT OF SALE – RESOLUTION OF BUYER**

[SIGNATURES APPEAR ON FOLLOWING PAGES]

This Act of Sale is executed by the parties on the date(s) set forth below, but effective for all purposes as of _____.

STATE OF LOUISIANA
PARISH OF _____

THUS DONE AND PASSED this ____ day of _____, 2023, in the presence of the undersigned competent witnesses who hereunto sign their names with the appearer(s) and me, Notary, after due reading of the whole.

WITNESSES:

Printed Name: _____

Printed Name: _____

SELLER:

**DEALERTRACK REGISTRATION AND
TITLING SERVICES - LOUISIANA, LLC**

By: _____

Printed Name: _____

Its: _____

Dated as of _____

Notary Public

My commission expires: _____

This Act of Sale is executed by the parties on the date(s) set forth below, but effective for all purposes as of _____.

STATE OF LOUISIANA
PARISH OF _____

THUS DONE AND PASSED this ____ day of _____, 2023, in the presence of the undersigned competent witnesses who hereunto sign their names with the appearer(s) and me, Notary, after due reading of the whole.

WITNESSES:

Printed Name: _____

Printed Name: _____

BUYER:

FASTPASS TAG & TITLE, a wholly owned subsidiary of ALLIANCE SAFETY COUNCIL, a Louisiana-based nonprofit organization **TITLING SERVICES - LOUISIANA, LLC**

By: _____

Printed Name: _____

Its: _____

Dated as of _____

Notary Public

My commission expires: _____

**EXHIBIT A
TO ACT OF SALE
PURCHASED ASSETS**

**EXHIBIT B
TO ACT OF SALE
RESOLUTION OF SELLER**

**EXHIBIT C
TO ACT OF SALE
RESOLUTION OF BUYER**
